

SHEPHEARD HOTEL RENOVATION

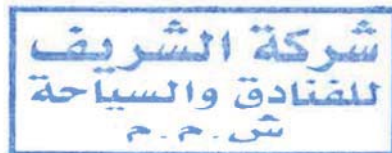
**Package SH-06 (A)
Annex Building Skeleton works, Underground Network and
Earthing**

Conditions of Contract

**Employer
Al Sharif for Hotels and Tourism**

**Contractor
Hassan Allam Construction**

Date: 20 Mar 2024



The Contract General Conditions

The Contract General Conditions shall be the FIDIC Conditions of Contract for Construction for Building and Engineering Works designed by the Employer, First Edition 1999 (Red Book), amended by the Contract Particular Conditions.

The provisions of all Clauses of Contract General Conditions which are not amended in the Contract Particular Conditions shall remain in full force and effect.

The Contractor deemed to be in possession of its own copy of the Contract General Conditions, to be fully aware of, and to have understood the contents thereof.

The Contract General Conditions are published by:

Fédération Internationale Des Ingénieurs-Conseils (FIDIC)

P.O. Box 86

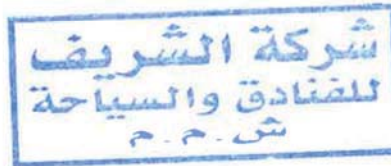
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The Contract Particular Conditions

General:

The Contract Particular Conditions are additional to those in the Contract General Conditions and supersede any provisions therein where they are contradictory.

1 General Provisions

1.1 Definitions

1.1.1.5 "Specification"

Replace this Sub-Clause with the following:

"means the document entitled specification, as included in the Contract Agreement, and any additions and modifications to the specification in accordance with the Contract. Such document specifies the Works (Permanent and Temporary Works, if any)".

1.1.1.7 "Schedules"

Replace this Sub-Clause with the following:

"means the document(s) entitled schedules and referred to in the Contract Agreement, completed and carry the stamps and initials of the Employer and the Contractor with the Contract Agreement's stamp. Such document may include the Bill of Quantities, data, lists, and schedules of rates and/or prices"

1.1.1.10 "Bill of Quantities" and "Daywork Schedule"

Replace this Sub-Clause with the following:

"means the documents so named (if any) which are comprised in Annex (1) and (2)".

1.1.1.11 "Contract Drawings"

Add this this new Sub-Clause:

"means the drawings, included in Annex (1) carrying the stamps and initials of the Parties as well as the Contract stamp".

1.1.1.12 "Shop Drawings"

Add this new Sub-Clause:

"means coordinated detailed drawings submitted by the Contractor and approved in writing by the Engineer that enables the proper execution on Site"

1.1.2.11 "Consultants"

Add this this new Sub-Clause:

"means the person appointed by the Employer to provide the technical supervision to the Works and to act as the construction supervision consultant for the purposes of the Contract Agreement and notified in writing to the Contractor or any other person appointed from time to time by the Employer and notified in writing to the Contractor".

1.1.2.12 "Base Programme"

Add this this new Sub-Clause:

"means the first work programme prepared by the Contractor under Sub-Clause 8.3 [Programme] to complete the Works within the Time for Completion of the Works stated in the Contract Data, and accepted in writing by the Engineer".

1.1.3.2 "Commencement Date"

Replace this Sub-Clause with the following:

"means the date on which the Employer receives the accepted Performance Security or the date on which the Contractor receives the Advance Payment, whichever is the later".

1.1.6.10 "Determination"

Add this this new Sub-Clause:

"means the Engineer's Determination issued under Sub-Clause 3.5 of the Conditions of Contract".



1.1.6.11 “Existing Building”

Add this this new Sub-Clause:

"means the current standing building that will be renovated and rehabilitated located at 26 Corniche El Nile -Garden City – Cairo – Arab Republic of Egypt".

1.1.6.12 “Annex Building”

Add this this new Sub-Clause:

“means the New building to be constructed attached to the Shepherd Hotel Existing Building Corniche El Nil, Qasr Ad Dobara – Cairo – Arab Republic of Egypt”.

1.2 Interpretation

1.3 Communication

Delete sub-paragraph (b)(ii)

Add the following Paragraph at the end of this Sub-Clause:

The Contractor shall establish and maintain, for the duration of the Time for Completion of the Works, an office at the Site at which instructions, notices, Determinations or other communications may be validly served upon him. The said offices shall be deemed to be the legal domicile in Egypt of the Contractor and shall be kept open at all customary hours to receive instructions, notices, Determinations or other communications unless otherwise agreed from time to time in writing with the Employer or the Engineer and the Contractor.

1.4 Law and Language

Delete and substitute as follows:

The Contract Agreement shall be governed by the laws of the Arab Republic of Egypt.
All correspondences shall be in English

1.5 Priority of Documents

Delete Sub-Clause 1.5 in its entirety and substitute:

The documents forming the Contract Agreement are to be taken as mutually complementary and explanatory of one another, and a requirement in one is binding as though occurring in all. For the purposes of interpretation, and in resolving conflicts, discrepancies, errors or omissions the following constitutes the priority of documents which will be used by the Engineer:

- (a) This Contract Agreement
- (b) The Contract Data
- (c) The Contract Particular Conditions
- (d) The Contract General Conditions (FIDIC Red Boo - First Edition 1999)
- (e) The priced Bills of Quantities within Annex (1)
- (f) The Specification within Annex (1)
- (g) The Drawings within Annex (1)
- (h) Weighs of Escalation Formula within Annex (2)
- (i) Tender Queries Log REV (1) dated 22 Feb 2024 within Annex (3)

The Contractor has already reviewed, studied and examined the documents forming the Contract Agreement as a whole to identify all requirements to perform the Works and shall not at any time exclude an item of the Works or be relieved of any obligation which is stated or implied by one contract document but not stated or implied in another.

If an ambiguity or discrepancy is found in the Contract Documents, the Contractor shall immediately notify in writing the Engineer and seek clarification. The Engineer shall

issue any necessary clarification or instruction or Determination according to Sub-Clause 3.5 of the Conditions of Contract.

1.6 Contract Agreement

Change the last sentence of this Clause to read as follows:

"Each Party shall bear the respective tax, stamp duties and similar charges (if any) imposed by the Law in connection with the Contract Agreement, and in accordance with Sub-Clauses 1.13c, 1.13d and 1.13e of the Conditions of Contract"

1.7 Assignment

1.8 Care and Supply of Documents

Delete the last Paragraph and add the following paragraphs:

The Contractor carefully reviewed all the Contract Documents and found it sufficient to perform, execute and complete the Works within the Time for Completion of the Works stated in the Contract Data and found that the Drawings and Specification contain a complete, correct, coordinated and reasonably detailed design from which it can properly prepare the Shop Drawings.

However, if the Contractor becomes aware of a shortage, an error or defect of a technical nature in a document, which was prepared for use in executing the Works, the Contractor shall promptly give notice to the Engineer of such error or defect. Such notice shall not give the Contractor the right to request an extension of Time for Completion of the Works unless the Engineer fails to respond to that notice within 12 working days from the date of receipt of the said notice and without prejudice to Clause 13 [Variations and Adjustments].

Two (2) weeks before applying for the Taking-Over Certificate for the whole Works or for a section or part of it, the Contractor shall submit to the Engineer at the Contractor's own expense two hard copies with two digital copies, in formats as instructed/approved by the Engineer, of the As-Built Drawings, Operation and Maintenance manuals and Manufacturers' Warranties, standards, codes and publications, etc. as required by Specification for the Works subject of the Taking-Over Certificate. After the issuance of the Taking-Over Certificate of the whole Works, the Contractor shall return to the Employer all documents provided under the Contract Agreement.

1.9 Delayed Drawings or Instructions

1.10 Employer's Use of Contractor's Documents

1.11 Contractor's Use of Employer's Documents

1.12 Confidential Details

Add the following paragraphs at the end of this Sub-Clause:

The Contractor shall deal with the Contract Agreement and everything related to as private and confidential. The Contractor shall not disclose or divulge or re-produce information of any kind to any other parties or issue any statements, any drawings related to the Works or publish any information and shall not use the Site for the



purpose of advertising, including that of his own operations without obtaining the prior written consent of the Engineer and the Employer,

No photographs of the Site, or of the Works, or any part thereof, or anything therein, shall be taken without the prior written approval of the Engineer. Such photographs shall not be published or circulated without the Engineer's prior written approval. Such approval shall exempt the Contractor from complying with any penalties under the Contract Agreement in this regard. The Contractor shall provide all reasonable facilities for persons authorized by the Engineer to take photographs make film/video or televise the Works. All photographs taken in accordance with the foregoing as stated above shall become the property of the Employer and copyright shall be vested in him.

1.13 Compliance with Laws

Add the following Paragraphs at the end of this Sub-Clause:

The Contractor shall comply fully and cause and require the Subcontractors to comply fully with all general and local acts, building codes, fire and sanitary codes, ordinances, rules, regulations, orders, directives and statutes of any and all governmental authorities, boards and commissions which may be applicable to the performance of the Works. The Contractor shall comply, and shall require Subcontractors to comply, with the provisions of the Safety and Sanitary Codes, including all amendments thereto and all standards and regulations issued thereunder.

The Contractor shall be fully responsible for the acts omissions of itself, officers, employees, agents, licensees, design and construction teams, Subcontractors, invitees, and guests and their respective officers, employees, agents, licensees, suppliers, guests, Subcontractors and all other persons performing any elements of the Works or supplying labour, services, materials and/or Plant for or under a contract with the Contractor or any Subcontractor. The Contractor shall enforce discipline and good order among its employees at all times and shall cause its Subcontractors to do likewise.

The Contractor shall comply with all local authorities' rules, regulations, orders, directives applicable to wage, and employment practices. In all cases, the Contractor shall be bound by the labour and social Insurance Laws and regulations and shall be responsible of any infringements thereof and shall bear any subscription, fees, duties or other related amount and provide Employer with receipts evidencing payment within ten days of effecting the payment.

The Contractor shall also remain responsible to execute the Works in accordance with the clearances to statutory authorities' approvals obtained by the Employer/Engineer as may be required for smooth functioning of the complete facilities included in the Works.

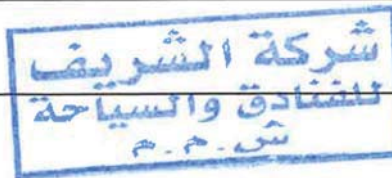
The Contractor shall not use any explosive(s) without the Engineer's prior written approval provided that it fully comply with the Arab Republic of Egypt regulations in this regard. Refusal to give such permission shall not entitle the Contractor to any claim for extension of Time for Completion of the Works or for additional payment.

1.14 Joint and Several Liability

2 The Employer

2.1 Right of Access to the Site

Add the following paragraph at the end of this Sub-Clause:



The Contractor acknowledges that its possession of the Site is only for the sole purpose of execution of the Works and it shall not use the Site for any other purpose whatsoever. It is further acknowledged and fully accepted by the Contractor that the Site is and shall remain under the full jurisdiction of the Employer, who may exercise control as it deems necessary in respect of entry to and/or temporary occupation of portions of the Site by any other contractors, suppliers or any person.

2.2 Permits, Licences or Approvals

Add the following Paragraph at the end of this Sub-Clause:

The Contractor shall be responsible to secure and pay for all licenses related to the execution and completion of the Works as required by the laws of the Arab Republic of Egypt. The building permits related to the Annex Building shall be provided and paid for by the Employer. The Contractor shall provide all information to the Engineer required to obtain any third authority's approval.

In case that the Contract shall obtain any license and/or approval it shall immediately submit a copy of the same to the Engineer and Employer

2.3 Employer's Personnel

2.4 Employer's Financial Arrangements

2.5 Employer's Claims

Delete the third paragraph of this Sub-Clause.

Delete "only" and "in accordance with this Sub-Clause" from the last sentence of the fourth paragraph.

Add the following Paragraph:

The Employer shall have, after giving the Contractor 7 working days written notice, the right to liquidate the Performance Security and the Advance Payment Guarantee without submitting a claim under this Sub-Clause.

3 The Engineer

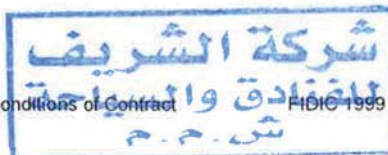
3.1 Engineer's Duties and Authority

Add the following paragraphs at the end of this Sub-Clause:

The Engineer may exercise the authority specified in, or necessarily to be implied from the Contract Agreement, including carrying out such duties as issuing information, instructions, orders, Valuations, Certificates, Determinations and Decisions as specified in the Contract Agreement. The Engineer, however, is required to obtain the Employer's prior written approval before exercising such authority in respect of the following:

- (a) Instructing any Variations, alterations, additions, omissions, changes to the Specification under Sub-Clause 13.1 [Right to Vary] and any instruction results in increase to the Contract Price and/or Time for Completion.
- (b) Ordering the expenditure of Provisional Sums.
- (c) Ordering tests to be carried out, or witnessed, at any place other than within the Arab Republic of Egypt under sub-Clause 7.4 [Testing].

The Employer may attend with the Engineer, any final test or inspection of the Works for which the Contractor has applied for a Taking-Over Certificate or a Performance Certificate.



Notwithstanding the obligation as set out above to obtain approval, if in the opinion of the Engineer, an emergency occurs affecting the safety of life, or of the Works, or of adjoining property, he may, without relieving the Contractor of any of his duties and responsibilities under the Contract, instruct the Contractor in writing to execute all such work or to do all such things as may, in the opinion of the Engineer, be necessary to abate or reduce such risk. The Contractor shall immediately comply, despite the absence of the respective approval of the Employer, with any such instruction of the Engineer. The Contractor, in such case, shall be entitled to an additional payment equal to the cost it incurred due to the Engineer's instruction.

3.2 Delegation by the Engineer

3.3 Instructions of the Engineer

3.4 Replacement of the Engineer

3.5 Determinations

4 The Contractor

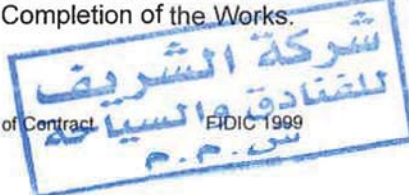
4.1 Contractor's General Obligations

Delete Sub-Clause 4.1 in it's entirely and replace with the following Paragraphs:

The Contractor shall supply all material, equipment and supplies and perform all Works in conformity with the approved Drawings and Specification and other Contract Documents and make no deviations without the prior written approval of Employer. Employer may inspect and conduct tests to determine whether the Works are being performed consistent with the Contract Documents or not. It is understood and agreed that neither Employer's inspection tests or approvals nor its failure to make any inspection or test or to discover defective workmanship, materials or equipment nor the payment of any funds by or on behalf of Employer shall relieve the Contractor of its responsibility to perform the Works in accordance with the Contract Documents or constitute a waiver or acceptance of such defects if any inspections or tests reveal a failure of the Works to comply with the requirements of the Contract Documents. If the inspections or tests reveal a failure of the Works to comply with the requirements of the Contract Documents, the Contractor shall bear all costs of such inspection or tests in addition to the costs of curing such failure and such cost shall not be included in the Contract price or be claimed to the extent such costs are attributable to such inspection or test and, if appropriate, shall not be entitled to an extension of Time for Completion thereof.

The Contractor shall be fully responsible for all construction means, methods techniques sequences and procedures.

The Contractor acknowledges that time is of the essence of this Contract Agreement and thus shall maintain and assign to the execution of the Works at all times sufficient staff and personnel to perform their services in a skilled, professional, and satisfactory manner so as not to delay the progress of the Works. Accordingly Contractor undertakes to provide the necessary expertise staff workforce, Temporary Works Contractor's equipment and all other resources, construction means, methods, techniques and procedures, required to ensure the timely progress and completion of all of the Works within the Time for Completion of the Works.



The Contractor is deemed to have inspected and examined the Site, the Annex Building and its surroundings and information available in connection therewith and accepts its current conditions and willing, able and capable perform the Works for the Project in efficient and timely manner and to have satisfied himself as to the form and nature thereof, the extent and nature of work and materials necessary for the execution and completion of the Works and the remedying of any defects therein, and means of access to the Site including cleaning of Site wherever required for proper execution. The Contractor also should have deemed to have obtained all necessary information, subject as mentioned above, as to risks, contingencies and all other circumstances which have been priced and taken into consideration in his tender negotiated prices before signing the Contract Agreement.

The Contractor is also deemed to have reviewed all the licences, permits and approvals that have been obtained and declare that these licenses, permits and approvals are complete and sufficient to immediately start the performance and implementation of the Works as per the terms and Conditions of this Contract Agreement.

Unless delayed by an Employer's-responsible event, the Contractor shall on the Commencement Date diligently carry on and prosecute all of the Works without stoppage, delay or cessation. In the event of any dispute for whatever reason, Contractor shall continue to perform under this Contract, and it shall be the responsibility of Contractor to cause its Subcontractors to do likewise

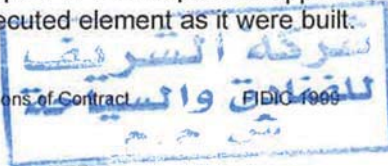
To whatever extent any Engineer's instruction is unclear, confusing or uncertain to the Contractor; the Contractor shall immediately request in writing a clarification from the Engineer. The Engineer shall notify the Contractor of the necessary clarification not later than 14 days from the date of the Engineer's receipt of the request clarification.

The Contractor shall indemnify and hold harmless the Employer, the Engineer, Consultants, surveyors and any inspecting/testing agents against and from all liabilities, obligations, fines, damages, penalties, claims, costs, charges and expenses including without limitation, attorneys' fees and disbursements, which may be imposed upon or incurred by or asserted against any such persons arising out of the performance of the Works by the Contractor

The Contractor shall, with due care and diligence, design (to the extent provided for by the Contract Agreement), execute and complete the Works and remedy any defects therein in accordance with the provisions of the Contract Agreement and instructions of the Engineer. The Contractor shall provide all superintendence, labour, materials, Plant, Contractor's equipment and all other things, whether of a temporary or permanent nature, required in and for such design, execution, completion and remedying of any defects, so far as the necessity for providing the same is specified or is reasonably to be inferred from the Contract Agreement.

The Contractor shall at his own cost, before fourteen (14) days of applying for the Taking-Over Certificate, prepare and submit for the Engineer's approval, As-built Drawings detailing the Permanent Works as executed with the manufacturer's operation and maintenance manuals, in sufficient details to enable the Employer to operate, maintain, dismantle, reassemble, adjust and introduce changes to the Permanent Works. The Works shall not be considered to be completed for the purpose of Taking-Over until the As-built Drawings together with operation and maintenance manuals including all product manufacturers' warranties, data, information, lists of spare parts and any literature required by Specification have been submitted to and approved by the Engineer. Approval by the Engineer shall not relieve the Contractor from any of his responsibilities under the Contract Agreement.

Before covering any work elements, the Contractor shall submit to Engineer, for site inspection and approval, two copies of the respective approved Shop Drawings but marked to show the installed/executed element as it were built.



The Contractor shall secure separate metering for the water and electricity consumption.

The Contractor shall cooperate and coordinate fully with the Engineer, the Employer and Consultants and inspecting and testing agents. The Contractor shall also be responsible for coordination between itself and its Subcontractors, Nominated Subcontractors and suppliers to avoid any co-ordination problems. The Contractor shall be fully responsible for the Works to be performed and executed by the Subcontractors.

The Contractor shall attend all regular and special meetings scheduled by the Engineer on the progress, co-ordination and any other matter in connection with the Works.

The Contractor is required to avoid the unnecessary repeated submissions or inspection requests.

With a view to approve standards of installation, function and finish, the Contractor shall keep the existing approved mock-ups which indicate the minimum accepted standard, by which subsequent work shall be compared.

4.2 Performance Security

Replace (b) of under fourth paragraph with the following:

"failure by the Contractor to pay the Employer an amount due within 30 days from the Employer's or the Engineer's notification in writing to the Contractor"

Insert an additional paragraph at the end:

"Without limitations to the provisions of the preceding paragraph, whenever the Engineer determines an addition to the Contract Price as a result of a change in cost and/or legislation or as a result of variations amounting to more than 10% (ten percent) of the Contract Price, the Contractor, at the Engineer's written request, shall promptly increase the value of the Performance Security by an equal percentage. The cost of complying with the requirements of the Clause shall be borne by the Contractor"

4.3 Contractor's Representative

4.4 Subcontractors

4.5 Assignment of Benefit of Subcontract

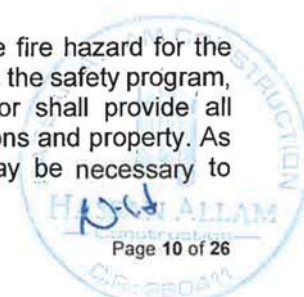
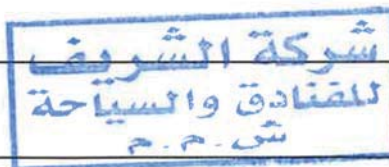
4.6 Co-operation

4.7 Setting Out

4.8 Safety Procedures

Insert new paragraph (f):

The Contractor shall design a specific safety program including the fire hazard for the Works and shall comply and require its Subcontractors to comply with the safety program, the normal and usual precautions for the Project. The Contractor shall provide all reasonable protection to prevent fire, damage, injury or loss to persons and property. As the Works progress, the Contractor shall take such action as may be necessary to



maintain safety and remove from the Site any personnel of the Contractor or Subcontractors who do not abide by or who violate such programs and/or precautions.

4.9 Quality Assurance

4.10 Site Data

4.11 Sufficiency of the Accepted Contract Amount

4.12 Unforeseeable Physical Conditions

4.13 Right of Way and Facilities

4.14 Avoidance of Interference

4.15 Access Route

4.16 Transport of Goods

4.17 Contractor's Equipment

4.18 Protection of the Environment

4.19 Electricity, Water and Gas

4.20 Employer's Equipment and Free-Issue Material

4.21 Progress Reports

Add the following Paragraph at the end:

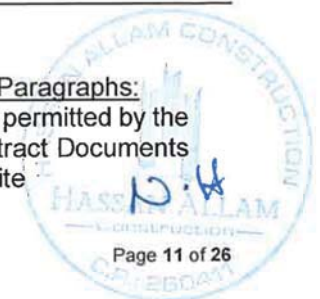
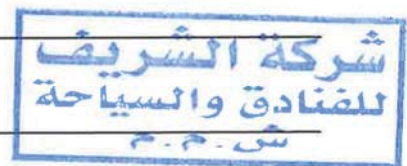
The Contractor shall send to the Engineer daily reports describing the actual resources and work activities proceeding during the day and the planned for next day.

4.22 Security of the Site

4.23 Contractor's Operations on Site

Delete Sub Clause 4.23 in it's entirely and replace with the following Paragraphs:

The Contractor shall confine its operations at the Site to areas therein permitted by the Laws of the Arab Republic of Egypt, ordinates, permits and the Contract Documents and shall not unnecessarily store any material or equipment on the Site



During the execution of the Works the Contractor shall keep the Site reasonably clean free from all unnecessary obstruction accumulations of water, waste materials and rubbish and shall store or dispose of any Contractor's Equipment and surplus materials and clear away and remove from the Site any wreckage, rubbish or Temporary Works no longer required.

The Contractor shall restore existing facilities such as roads other paved surfaces fencing curbing and the like to at least their preconstruction conditions.

Failure by the Contractor to maintain any requirements of this Sub-Clause, shall entitle the Engineer, or Employer, to withhold a portion of the Contractor's due payment until such requirement is maintained.

4.24 Fossils

4.25 "Dumping of Waste Material"

Insert new Sub Clause 4.25 as follows:

"Construction debris or any other waste materials arising from the Works shall be removed from the Site upon the approvals of the Engineer.

The Contractor shall dispose all such materials per Egyptian Municipality requirements including transportation to designated Egyptian Municipality dumping grounds (except directed otherwise in writing by the Engineer as per Sub-clause 13.3 (Variation Procedures), the Engineer may instruct the Contractor to furnish dumping receipts evidencing the same."

5 Nominated Subcontractors

5.1 Definition of "nominated Subcontractor"

5.2 Objection to Nomination

5.3 Payments to nominated Subcontractors

5.4 Evidence of Payments

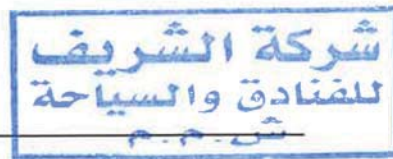
6 Staff and Labour

6.1 Engagement of Staff and Labour

6.2 Rates of Wages and Conditions of Labour

6.3 Persons in the Service of Employer

6.4 Labour Laws



6.5 Working Hours

Delete Sub Clause 6.5 in it's entirely and replace with the following Paragraph:

The Contractor shall comply with the Egyptian Labour Law with respect to locally recognized Fridays, festivals and religious holidays and the reduced working hours during the holy month "Ramadan".

The Contractor may continue the Works on the Site during nights and/or the locally recognized days of rest provided obtaining the Engineer's prior written approval. The cost incurred by the Employer in such cases, will be charged to the Contractor by deductions from the Interim Payments except where the work is unavoidable and cannot be performed during the official Working Hours for technical reasons, or necessary for the protection of life or property of for the safety of the Work. The hour rates shall be according to the mutual agreed upon rates.

6.6 Facilities for Staff and Labour

Delete Sub Clause 6.6 in it's entirely and replace with the following Paragraphs:

The Contractor shall be allowed to provide, at its expense, storage areas and accommodation for its personnel on Site provided that it obtain the Employer's prior written approval on the proposed location, area and layout.

The Contractor shall also provide complete facilities for the Employer's Personnel on Site. The Employer's Personnel facilities include the office furniture and equipment.

The Contractor shall proceed with the Site temporary installations after obtaining the Engineer's approval to its detailed proposal.

The Contractor shall bear the cost of the electrical, water consumption, telephone, ADSL and all consumables.

6.7 Health and Safety

Add the following Paragraphs at the end of this Sub-clause:

The Contractor shall immediately report to the Engineer on any accident or incident occurs at the Site within twenty-four (24) hours from the accident or incidents occurrence. The Contractor shall also report on such accident or incident to the appropriate local authorities whenever it is required to do by Law.

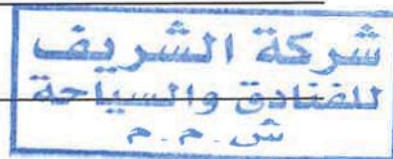
The Contractor shall observe and comply in all respects with the rules, regulations and directions of the Ministries of Health, Environment, Tourism, and Culture, applicable on the Site facilities and activities.

6.8 Contractor's Superintendence

6.9 Contractor's Personnel

6.10 Records of Contractor's Personnel and Equipment

6.11 Disorderly Conduct



7 Plant, Materials and Workmanship

7.1 Manner of Execution

7.2 Samples

Delete Sub Clause 7.2 in it's entirely and replace with the following Paragraphs:

The Contractor shall effect the Material submittals for the Engineer's approval in such times that allow sample time for the Engineer's review, comments, approvals, purchasing, manufacturing, delivery to Site and the Engineer's inspection and acceptance for using in/for the Works without any delay to the Time for Completion. The Contractor shall be responsible for any delay of the Engineer's approval if caused by submittals not complying with the Specification.

The Contractor shall provide an adequate enclosed store at the Site for the samples approved by the Engineer. Each sample shall be labelled as to Specification item reference, manufacturer's name, date and reference of Engineer's approval. This store shall be in the custody of the Engineer.

The Engineer shall issue the respective approval/comments to the Contractor within seven (7) working days from the date of receiving such submittals. The Contractor shall not order Materials before obtaining the Engineer's approval to the respective material submittals and Shop Drawings.

7.3 Inspection

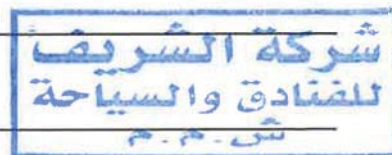
7.4 Testing

7.5 Rejection

7.6 Remedial Work

7.7 Ownership of Plant and Materials

7.8 Royalties



8 Commencement, Delays and Suspension

8.1 Commencement of Work

8.2 Time for Completion

Add the following Paragraph:

The Time for Completion is Fifteen (15) Months.

8.3 Programme

Delete Sub Clause 8.3 in it's entirely and replace with the following Paragraphs:



Within 21 days from the Signing Date, the Contractor shall submit to the Engineer for its review a programme showing the sequence by which it proposes to carry out the Works. The programme shall be based on a critical path network detailing all activities of the mobilization, procurement, construction and the resources with resources allocation. The procurement shall include all the Contractor's submissions in respect of Subcontractors, materials, Shop Drawings, method statements, ext. showing the time allowance for the authorities, whenever is required, and or the Engineer's approval processes, materials ordering, manufacturing, if applicable, and delivery to Site. The construction period within the programme shall include the Engineer's/Consultants site inspections and approvals. Tests on completion shall include prior successful testing and commissioning of the electro-mechanical systems.

The programme shall be prepared using the latest version of Primavera software and shall be submitted to the Engineer together with a hard copy detailing the sequence, predecessor or successor, the activity, early start, early finish, late start, late finish, the floats, and the resources.

The Engineer shall review the programme with respect to the reasonability of its assumptions and the logic of its network, resources, durations, relations between the different activities and floats. The Engineer shall either accept the programme, if in its opinion is workable, or communicate its comments to the Contractor. The Contractor shall take into consideration the Engineer's comments, adjust and resubmit the adjusted programme to be considered as the Base Programme.

The Contractor shall submit to the Engineer Bi-Weekly Programme Updates. Each Update shall be accompanied by a narrative report describes the actual progress of the Works, resources vs the planned and cause of any deviation from the Base Programme and propose the corrective measures to overcome any slippage or delay.

The Engineer's acceptance of such programs or the Contractor's arrangements shall not relieve the Contractor of any of its duties or responsibilities under the Contract Agreement.

The Contractor shall keep the programme or updates, if any, under constant review and on view in his site office.

The Contractor shall revise the Base Programme whenever the Time for Completion of the Works is extended.

Failure by the Contractor to submit the Programme or its timely updates to the Engineer shall constitute a default by Contractor deserves withholding 10% of the Interim Payment Certificate until the Contractor fulfils such requirement.

8.4 Extension of Time for Completion

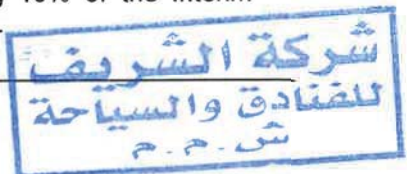
Add the following Paragraph at the end of this Sub-Clause:

The Prima Vera application shall be the only software to be used to determine the Contractor's entitlement to the extension of Time for Completion of the Works based on the critical path method. No other software or way shall be utilized for this purpose.

The Contractor shall not be entitled to an extension of Time for Completion of the Works caused by delays of approvals to its proposals or submittals that are not conforming to Specification and the other Contract Documents.

The extension of Time for Completion of the Works shall be determined separately for each event gave rise for time impact. Grouping of events shall not be allowed

In case the completion of a certain part(s) of the Works was delayed due to Employer's responsible events, the Time for Completion of the Works shall be extended for this part(s) only and shall not relieve the Contractor from its obligation to complete the other parts for Taking-Over in accordance with the accepted Base Programme.



If an event caused delay to certain part of the Works, the Employer may choose, with its sole consent, to take-over other parts or packages within the Time for Completion of the Works.

8.5 Delays Caused by Authorities

8.6 Rate of Progress

8.7 Delay Damages

Delete Sub-Clause 8.7 in its entirety and replace it with the following:

If the Contractor failed to comply with Sub-Clause 8.2 [Time for Completion], then the Contractor shall pay to the Employer the sum of the Delay Penalties counted in accordance with the percentages stated in the Contract Data and Contract Agreement in addition to the cost of supervision of the Works incurred by the Employer due to the Contractor's delay. The Employer may without prejudice to any other method of recovery, deduct the amount of the Delay Penalties from any monies due or shall become due to the Contractor. If these monies were insufficient to cover the amount of the penalties, the Employer shall partially liquidate any Contractor's bank guarantee to recover its entitlement. The payment or deductions of such amounts shall not relieve the Contractor from his obligation to complete the Works, or from any other of his obligations and liabilities under the Contract Agreement.

The Delay Penalties for each week of delay shall be equal to one percent (1%) of the Accepted Contract Amount, with a limit of 10% of the Accepted Contract Amount.

8.8 Suspension of Work

8.9 Consequences of Suspension

8.10 Payment for Plant and Materials in Event of Suspension

8.11 Prolonged Suspension

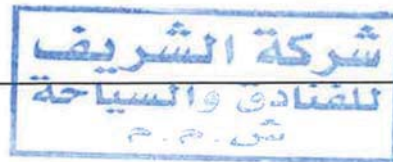
8.12 Resumption of Work

9 Tests on Completion

9.1 Contractor's Obligations

9.2 Delayed Tests

9.3 Retesting



9.4 Failure to Pass Tests on Completion

10 Employer's Taking Over

10.1 Taking Over of the Works and Sections

Add the following Paragraphs at the end of this Sub-Clause:

The Contractor shall submit for the Engineer's approval, fourteen (14) days before applying for the Taking-Over Certificate, As-built Drawings. The Works shall not be considered to be completed for the purpose of Taking-Over until the As-built Drawings together with data, information and any literature required by Specification have been submitted to and approved by the Engineer.

The Contractor shall complete any outstanding works and remedy any defects referred to in the Taking-over punch lists within the period as mutually agreed between Parties to the Contract Agreement, failing which, the issuance of the Taking-over Certificate shall be withheld in case of major defects that hinder the exploitation of the Works. The Contractor shall then re-submit for the Taking-over Certificate after completing the necessary rectification works.

10.2 Taking Over of Part of the Works

10.3 Interference with Tests on Completion

10.4 Surfaces Requiring Reinstatement

11 Defects Liability

11.1 Completion of Outstanding Work and Remedying Defects

Add the following Paragraph:

Defect Notification Period for the whole Works shall mean a period of 365 days calculated from the issuance date of the Taking-Over-Certificate.

11.2 Cost of Remedying Defects

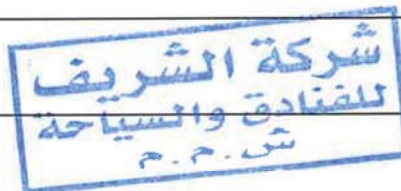
11.3 Extension of Defect Notification Period

11.4 Failure to Remedy Defects

11.5 Removal of Defective Work

11.6 Further Tests

11.7 Right of Access



11.9 Performance Certificate

11.10 Unfulfilled Obligations

11.11 Clearance of Site

12 Measurement and Evaluation

The Accepted Contract Amount is a re-measure amount. Therefore, it is subject to measurement and the quantities of the Works that are required to be executed, completed and maintain the Works described and delineated in the entire Contract Documents including, the Drawings and Specification, Bills of Quantities and Schedules. The Contract Price shall be adjusted for the Value Engineering, Variations, Provisional Sums and Nominated Subcontractors.

Evaluation of the progress of the Works, cash flow and the Interim Payments shall be based or guided by the Bill of Quantities item rates.

The Contract Documents are complementary, and the Contractor is obliged to provide and maintain all Works items shown in any of the Contract Documents and is deemed to have included this obligation in the Accepted Contract Amount.

In the event that a difference is found between the Contract Documents with regard to any item standard, specifications or quantity, the Contractor shall, immediately notify the Engineer of such difference according to sub-clause 1.5. If the Engineer decided to proceed with a lower standard, specifications, or quantity item, such decision shall be issued under Sub-Clause 13.1 [Right to Vary].

13 Variation and Adjustments

13.1 Right to Vary

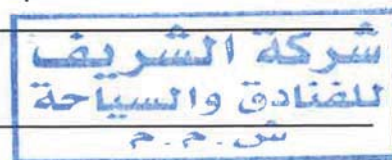
The Contractor shall not make any alteration and/or modification of the Permanent Works, unless and until the receiving an Engineer's instruction, stating that it is issued under Sub-Clause 13.1 [Right to Vary] approved in writing by the Employer or receiving the Employer's written approval to a Contractor's Variation proposal.

13.2 Value Engineering

13.3 Variation Procedure

Delete "as soon as practicable" in first paragraph, second line, and substitute "within the period stated in the instruction"

Upon instructing or approving a Variation, the Engineer shall proceed in accordance with Sub-Clause 3.5 to agree or determine adjustments under Sub-Clause 14.4. These adjustments shall include 25% excluding VAT of the direct cost for direct and indirect



overheads including the engineering in addition to profit and shall take account of the Contractor's submissions under Sub-Clause 13.2 if applicable. The direct cost consists of the cost of the materials including custom duties, transportation to the Site, direct labour and consumption of the parts of the used equipment/tools. In case a Subcontractor executed the work, these adjustments shall include 15% excluding VAT of the Subcontractor's approved amount for the Contractor's overheads and profit.

Within fourteen (14) days, or a reasonable time accepted by the Engineer, from receiving a Variation Instruction under Sub-Clause 13.1 [Right to Vary], the Contractor shall submit its price proposal with the necessary particulars for the Engineer's approval. Such proposal may use the Contract item rates where appropriate. The Engineer shall proceed in accordance with Sub-Clause 3.5 [Determinations].

The Engineer may apply the Contract Agreement's rates in evaluating the Variation Order, if in its opinion, is applicable.

13.4 Payment in Applicable Currencies

13.5 Provisional Sums

13.6 Daywork

Delete the last sentence of the first Paragraph "If a Daywork Schedule is not included in the Contract, this Sub-Clause shall not apply" and substitute with the following:

"If a Daywork Schedule is not included in the Contract Agreement, a mutually agreed list, signed by both Parties, of the labour and material shall be used in applying this Sub-Clause 13.6. Daywork shall proceed after receiving the Employer's instruction/approval".

13.7 Adjustments for Changes in Legislation

13.8 Adjustments for Changes in Cost

Add the following at the beginning:

"The Contract prices will be adjusted based upon the CAPMAS Indices of Feb 2024, for the Steel Rebar, Ready Mix Concrete and Steel Structure. Annex (2) includes the weights of the escalation formula to be applied on the price adjustments"

14 Contract Price and Payment

14.1 The Contract Price

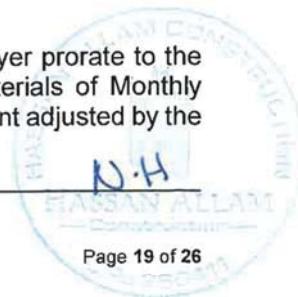
Delete sub-paragraph (a) and substitute:

(a) the Contract Price shall be the Re-measure Accepted Contract Amount and subject to adjustments in accordance with the Contract Agreement .

14.2 Advance Payment

Add the following Paragraph at the end:

The Advance Payment to the Contractor shall be repaid to the Employer prorate to the relationship of the total amount of executed Works and unfixed materials of Monthly Payment Certificate to the Contract Price (The Accepted Contract Amount adjusted by the Variations).



14.3 Application for Interim Payment Certificates

Add the following Paragraph at the end of this Sub-Clause:

The Contractor's Representative shall sign the monthly Interim Payment Certificate. The Works executed, on-Site unfixed Materials and uninstalled Plant taken into account in the Interim Payment Certificate shall be limited to that inspected and accepted by the supervision consultant appointed in writing by the Employer and notified to the Contractor. The quantities of such Materials shall be limited to that required to complete the Works.

The amount taken into account against on-Site unfixed Materials and un-installed Plant under Sub-Clause 14.5 [Plant and Materials intended for the Works] shall be 60% of the rate of the Bill of Quantities.

The Engineer shall check and adjust the Interim Payment Certificate, if necessary, and return it to the Contractor within 14 days. If the Engineer finds a need for further particulars for such adjustments, it shall communicate with the Contractor within 5 days from the date of receipt of the Interim Payment Certificate. If the Contractor have any comments concerning such adjustments/particulars, it shall present it in writing to the Engineer within 5 days from being notified, otherwise the Contractor shall be deemed has accepted the Engineer's adjustments.

14.4 Schedule of Payments

Add the following Paragraphs at the end of this Sub-Clause:

The Employer shall pay to the Contractor an Advance Payments equivalent to against unconditional bank guarantee of the same amount, in a form and issued by a bank accepted by the Employer and after receiving the Performance bank guarantee. Repayment shall be in accordance with Sub-Clause 14.2.

The Contractor shall submit its Cash Flow Plan along with the Time Schedule.

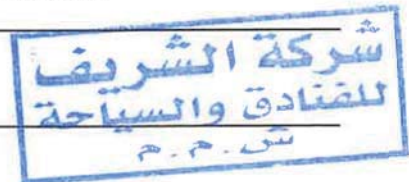
14.5 Plant and Materials intended for the Works

Replace "eighty percent of the Engineer's determination of the cost of Plant and Materials" with "60% of rate of the Bill of Quantities" in the first line of the penultimate paragraph.

Insert a new paragraph at the end of this Sub-Clause to read:

"The Contractor shall keep all such materials properly segregated and labelled and permit the Consultant to inspect or remove such materials at any time. Provided that the Employer has not taken possession of such materials, the Contractor shall continue to be responsible for the care, storage, delivery and insurance of such materials and shall indemnify the Employer against any loss or damaged cause to them"

14.6 Issue of Interim Payment Certificates



14.7 Payment

In the first line of subparagraph (b): Replace "56 days" with "28 days"

14.8 Delayed Payment

14.9 Payment of Retention Money

Delete this Sub-Clause in entirety and substitute:



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the Performance Security without having to serve any notice upon the Contractor or resort to any legal proceedings.

15.5 Employer's Entitlement for Termination

16 Suspension and Termination by Contractor

16.1 Contractor's Entitlement to Suspend Work

16.2 Termination by contractor

16.3 Cessation of Work and Removal of Contractor's Equipment

16.4 Payment on Termination

17 Risk and Responsibility

17.1 Indemnities

17.2 Contractor's Care of the Works

17.3 Employer's Risks

17.4 Consequences of Employer's Risks

17.5 Intellectual and Industrial Property Rights

17.6 Limitation of Liability

18 Insurance

18.1 General Requirements for Insurance

Delete the first paragraph and replace it with the following:

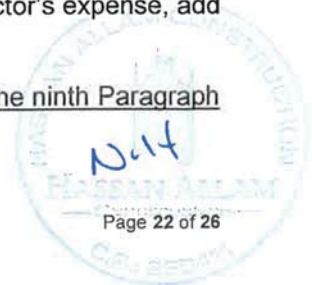
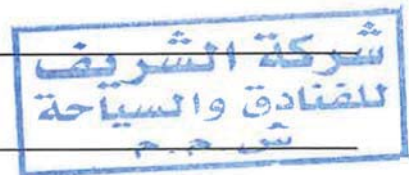
"In this Contract Agreement and in this Clause 18, the Contractor is the insuring Party"

Delete the third and fourth paragraphs and replace it with the following:

"The insurances to be provided under this Sub-Clause represent the minimum requirement for the Employer, and the Contractor may, at the Contractor's expense, add such other insurances that the Contractor may deem prudent"

Delete "Neither Party shall" and "other Party" in the first sentence of the ninth Paragraph and replace it with:

"The Contractor shall not" and "the Employer" respectively.



Delete second sentence of the ninth paragraph and replace it with the following:

"The Contractor shall be responsible for notifying the insurers of any changes in the nature, extent or Programme for the execution of the Works and the adequacy and validity of the insurances in accordance with the Contract Agreement at all times during the performance of the Contract Agreement".

18.2 Insurance for Works and Contractor's Equipment

Delete "for not less than the full reinstatement cost including the costs of demolition, removal of debris and professional fees and profit" in the first sentence of the first Paragraph and substitute "for an amount equal to the Contract Price plus an 15% to cover any additional costs incidental to the rectification of loss or damage, including professional fees and the cost of demolition and removal of debris"

After the end of the first paragraph, add the following:

Insurer of the Works shall be a company registered in Egypt approved in writing by the Employer.

18.3 Insurance against Injury to Persons and Damage to Property

Delete "to any physical property" in first sentence of the first Paragraph and substitute it with the following:

"to any physical properties other than the Works"

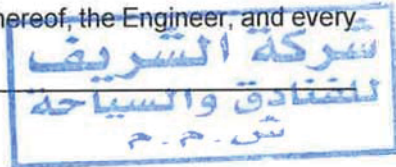
Delete the second Paragraph and replace it with the following:

The insurance for Injury to person per shall be for a limit five hundred thousand Egyptian Pound (LE. 500,000) per Person per occurrence and without aggregate for damage to property.

18.4 Insurance for Contractor's Personnel

In the first sentence of the second Paragraph, delete "The Employer and the Engineer" and replace it with the following:

"The Employer and every member, officer and employee thereof, the Engineer, and every member of his staff and every other authorised person."



18.5 Damage to the Works

Add the following as new Sub-Clause 18.5:

"If any loss or damage occur to the Works, all amounts paid by the insurer under the policy effected pursuant to Sub-Clause 18.2 shall be paid to the Employer. The Engineer shall, at his sole discretion, either:

- a) order the Contractor to replace or repair the parts of the works lost or damaged, or
- b) take such other measures as he deems necessary to replace or repair the lost or damaged parts of the Works.

In the event that the Engineer, after obtaining the Employer's approval, orders the Contractor to replace the lost or damaged parts, the Employer shall pay to the Contractor either the amount received from the insurers in respect of the loss or damage or the cost incurred by the Contractor in executing the replacement or repair (valued in accordance with the provisions of Clause 13, whichever is the lesser"

18.6 Liabilities

Add the following new Sub-Clause 18.6:



"The requirements contained herein as to types and limits, as well as Employer's approval of insurance coverage to be maintained by the Contractor, are not intended to and shall not in any manner limit or qualify the liabilities and obligations assumed by Contractor under this Contract Agreement. Contractor shall require each lower-tier Subcontractor to comply with all insurance requirements appropriate for its scope of work, and any deficiency shall not relieve the Contractor of its responsibilities herein. Upon written request from Engineer, the Contractor shall provide the Employer with complete, certified copies of all required insurance policies, and/or copies of lower-tier Subcontractors' certificates of insurance. The Employer shall have no duty to advise the Contractor in the event the Contractor's insurance does not comply with the requirements of this Contract Agreement. If the Contractor fails to procure and maintain all the insurance coverage required by this Sub-Clause, the Contractor shall indemnify and hold harmless each member of the Employer, the Engineer from and against all claims, demands, costs, charges and expenses that would have been covered by such insurance had Contractor complied with its obligations herein.

19 Force Majeure

19.1 Definition of Force Majeure

19.2 Notice of Force Majeure

19.3 Duty to Minimize Delay

19.4 Consequences of Force Majeure

19.5 Force Majeure Affecting Subcontractor

19.6 Optional Termination, Payment and Release

19.7 Release from performance under the Law

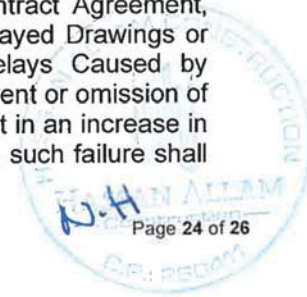
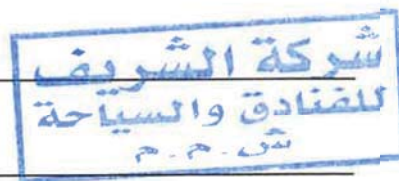
20 Claims, Disputes and Arbitration

20.1 Contractor's Claims

In the fifth paragraph: delete "42" and replace it with "35"

Delete the last sentence of the last paragraph and replace with the following:

"Notwithstanding any other provision of the Contract Agreement, including without limitation the provisions of Sub-Clause 14.14 [Cessation of Employer's Liability], if the Contractor fails to comply with any of the provisions of the Contract Agreement, including without limitation the provisions of Sub-Clauses 1.9 [Delayed Drawings or Instructions], 8.4 [Extension of Time for Completion], 8.5 [Delays Caused by Authorities] and 20.1 [Contractor's Claims], in respect of any act, event or omission of whatever nature which in the opinion of the Contractor should result in an increase in the Contract Price and/or an extension of Time for the Completion, such failure shall



constitute on the part of the Contractor a definitive and irrevocable waiver of, and release of the Engineer and the Employer from any and all claims arising from any such act, event or omission, and the Contractor shall be irrevocably stopped from raising any claims arising from any such act, event or omission thereafter."

Add the following Paragraphs at the end of this Sub-Clause:

"Any Contractor's claim concerning the Time for Completion shall be substantiated by detailed time analysis based on the latest work programme Update submitted to the Engineer immediately before the occurrence of the event that gave rise to the delay.

The Contractor's claim for any additional payment shall be based on and limited to the actual costs and damages as evidenced by the Project contemporary records.

The concurrent delays, if any, shall entitle the Contractor only to an Extension of Time to be submitted according to Sub-Clause 20.1 of the Contract Agreement without any entitlement or right to claim any prolongation costs.

20.2 Appointment of the Dispute Adjudication Board

20.3 Failure to Agree Dispute Adjudication Board

20.4 Obtaining dispute Adjudication Board's Decision

20.5 Mediation

Delete Sub-Clause 20.5 and replace with it with the following:

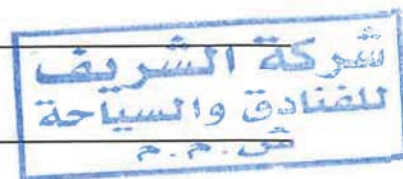
Where notice of dissatisfaction has been given in accordance with Sub-Clause 20.4, the parties shall attempt to settle such dispute through mediation in accordance with the rules of the Cairo Regional Center for International Commercial Arbitration. In case if the parties do not agree on a mediator or if the mediator has not been appointed accordingly to article 6, paragraph 1 (of CRCICA Mediation Rules) within the time period agreed by the parties or, where the parties have not agreed on a time period, within 14 days from the date of the commencement of the mediation, a mediator shall be appointed by the Center from amongst the members listed in the Centre's Panel of Accredited Mediators.

There shall be only one mediator and the location of the mediation shall be in Cairo, Egypt, in a location to be mutually agreed upon by the Parties.

The Party seeking to commence mediation shall submit to the Cairo Regional Center for International Commercial Arbitration the following:

- a) Names of Parties in dispute
- b) Contact information of each Party and their representatives
- c) Background on the dispute and its amount
- d) Required qualifications for mediators whom the Cairo Regional Center for International Commercial Arbitration will select
- e) Location of the mediation proceedings
- f) Language of the proceedings

If either the Employer or the Contractor is dissatisfied with the outcome of mediation, then either the Employer or the Contractor may give notice to the other Party, with a copy for informing to the Engineer, of his intention to commence arbitration as to the matter in dispute.



20.6 Arbitration

Delete Sub-Clause 20.4 and 20.5 and 20.6 and replace with the following:

"Any dispute, in respect of which

1. The decision, if any, of the DAB's decision has not become final and binding pursuant to Sub-Clause 20.4 and
2. The outcome of the mediation does not satisfy any of the Parties

shall be resolved by arbitration as provided in this Sub-Clause 20.6 according to the rules of Cairo Regional Center for International Commercial Arbitration (CRCICA Rules)

- a) The seat of arbitration shall be Cairo, Egypt
- b) The Language of Arbitration shall be English
- c) The Number of arbitrators shall be three
- d) The law governing the substance of the arbitration shall be the Egyptian Law
- e) The Law governing the validity of the arbitration agreement shall be the Egyptian Law
- f) The Arbitration procedures shall be confidential
- g) The arbitral tribunal shall be competent to decide the validity of the arbitration agreement
- h) The arbitral award shall be final and binding

20.7 Failure to Comply with Dispute Adjudication Board's decision

20.8 Expiry of Dispute Adjudication Board's Appointment

